



CRM-M-30287-2026 and
CRM-M-30288-2026

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205 (2 cases)

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-30287-2026

Balwinder Singh

.....Petitioner

Versus

State of Punjab

.....Respondent

CRM-M-30288-2026

Gurpreet Singh @ Gopi

.....Petitioner

Versus

State of Punjab

.....Respondent

Decided on: 03.06.2026

CORAM: HON'BLE MR. JUSTICE SANJAY VASHISTH

Present: Mr. Ranjodh Singh Sidhu, Advocate
for the petitioner(s) (in both cases)

Mr. Neeraj Madaan, Sr. DAG Punjab

SANJAY VASHISTH, J. (ORAL)

1. By way of this common order, both the above-mentioned petitions are being decided together as they arise out of the same FIR and common allegations.
2. Petitioners have filed instant first bail petition under Section 482 of BNSS, 2023 (earlier Section 438 Cr.P.C.), for grant of anticipatory bail, during the pendency of trial, who have been booked in a criminal case arising out of FIR No. 11, dated 22.01.2026 registered under Sections 109, 115(2), 126(2), 3(5), 61(2) of



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BNS (Sections 307, 323, 341, 34, 120-B IPC) at Police Station Division A, District Amritsar.

3. On the statement of complainant-Rajbir Kaur, present case was registered with the following version :

"Statement of Rajbir Kaur wife of Surinder Singh, resident of Gharukkia Wali Gali, Baba Deep Singh Colony, Fatehgarh Churian Road, Amritsar, age about 37 years, mobile number 8195869878, stated that I am a resident of the above address and do household work. I have two sons Deepak, Armaan, and two daughters Arshdeep Kaur and Simranjit Kaur who are married. On 13.01.2026, on the day of Lohri, my sons were flying kites on the roof of our house and our neighbor Gopi and his friends were flying kites on the roof of their house. Over flying kites, an altercation and verbal abuse took place between them. Yesterday morning on 21.01.2026, my son Deepak and I were walking in the street when Gopi and his family confronted us due to the enmity of that day. Gopi's father hit me on the head with a 'datar' and Gopi struck my son Deepak with a 'datar' which hit the little finger of his left hand. Regarding this, after getting a medical slip from Police Station Sadar, we went to Civil Hospital Amritsar. There at about 1:30/2:00 PM, my husband Surinder Singh son of Harjinder Singh had gone to get some hospital papers photocopied, where near the bridge outside the hospital, Gopi, Gopi's father, Vicky, and a migrant boy caught hold of my husband Surinder Singh, and Gopi attacked my husband with his hand-held 'kirch' on his left flank and left thigh. Gopi's father struck my husband on his back and body with his hand-held 'datar'. Vicky and the migrant boy had caught my husband and punched and boxed him. Somehow my husband escaped and came inside the hospital. There, seeing him in an injured condition, the doctor referred him to Guru Nanak Dev Hospital Amritsar. Where he is currently admitted in the ICU, and my husband told me about this incident. The cause of enmity is the altercation that took place between my sons and them on the day of Lohri. I have recorded my statement to you, action should be taken against them and justice should be provided to us, the statement has been heard and found correct; Sd/- Rajbir Kaur."

4. Learned counsel for the petitioner(s) refers to para 7 of order passed by learned Additional Sessions Judge on 02.05.2026, in regard to prayer of bail of



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petitioner-Gurpreet Singh @ Gopi and submits that even as per observations made by the Court of Sessions, the allegations levelled by the complainant was found be false. During investigation, Gurpreet Singh @ Gopi (petitioner in CRM-M-30288-2026) and Balwinder Singh (petitioner in CRM-M-30287-2026), both were found to be in Civil Hospital, whereas the kirch blow on the chest of the injured is attributed to petitioner-Gurpreet Singh @ Gopi.

5. Short reply by way of an affidavit of Sh. Ravinder Singh, PPS, Assistant Commissioner of Police, (East), Amritsar City on behalf of the respondent-State has been filed in the Court today. The same is taken on record.

6. In the status report (page 5, para 12) filed today in the Court also, it has been stated that *“as per the prosecution version, the petitioner along with his father Balwinder Singh has hatched a conspiracy and called Sahildeep Singh alias Sahil, who along with Raja Sahota, Joban and Gagandeep Singh alias Love Bhatti caused injury upon Surinder Singh. There is no direct attribution upon the petitioner but during the investigation it was found that the petitioner is the key conspirator who got attacked upon Surinder Singh through his relative Sahildeep Singh.”*

7. Learned counsel for the petitioner submits that, injury covered under Section 109 of BNS is attributed to co-accused Gagandeep Singh @ Love Bhatti and not to the petitioner.

8. Heard the submissions addressed by counsel for the parties and finds that it is a fit case for grant of concession of anticipatory bail to the petitioner(s).

9. Accordingly, petitioners are directed to join the investigation within two weeks from today, or as and when called by the investigating agency, and in



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the eventuality of the arrest, petitioners would be released on anticipatory bail, subject to their furnishing bail bonds to the satisfaction of the Arresting Officer. The petitioners shall also be abide by all the conditions laid down under Section 482(2) of BNSS, 2023 (earlier Section 438(2) Cr.P.C.).

10. Besides, it is directed that petitioners would hand over their passport to the Investigating Agency or to Court concerned, if they possess. Otherwise, would submit an affidavit, disclosing the fact that they do not possess any passport.

It is also directed that before leaving country any time during trial, petitioners would seek prior permission of the Court.

11. With the directions issued here above, both the petitions are allowed.

12. A photocopy of this order be placed on the file of connected case.

03.06.2026
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(SANJAY VASHISTH)
JUDGE

Whether speaking/reasoned: *Yes/No*
Whether Reportable: *Yes/No*